TENTATIVE RULING

Cristina Araujo, et al.
v.
Salinas Valley Memorial Healthcare System
22CV000011

Plaintiffs' Motion to Strike or Tax Defendant's Memorandum of Costs

Hearing Date: August 24, 2026

Defendant Salinas Valley Health ("Defendant") seeks a cost award totaling $26,071.21, asserting that these costs were incurred in defending against the Second Amended Complaint's Fifth Cause of Action for Wrongful Discharge. Plaintiffs[1] move to strike or tax those costs.

As detailed below, the motion is **GRANTED IN PART AND DENIED IN PART**. The Court strikes the full amount of Defendant's costs for reporter fees ($620.52) and court filings ($1,334.06)[2] because Defendant would have incurred them regardless of the Fifth Cause of Action. For the $2,779.13 Defendant incurred for the transcript of Plaintiff Cristina Araujo's deposition, Defendant's recovery is reduced to $277.91 due to the overlap between the Fifth Cause of Action and the claims under the California Fair Employment and Housing Act ("FEHA"). Therefore, the total cost awarded to Defendant for which Plaintiffs are jointly and severally liable is $277.91.

Plaintiffs' objections to paragraphs 4 through 7 and 10 of defense counsel Geoffrey Spellberg's declaration are **OVERRULED** because the challenged attestations constitute attorney argument rather than evidentiary fact.

Plaintiffs shall prepare the Proposed Order consistent with this Tentative Ruling.

<u>Legal Standard</u>.

Code of Civil Procedure section 1033.5, subdivision (a) lists the items allowable as costs under section 1032.10. "An award of costs shall be subject to the following: [¶] (1) Costs are allowable if incurred, whether or not paid. [¶] (2) Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation. [¶] (3) Allowable costs shall be reasonable in amount. [¶] (4) Items not mentioned in this section

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[1] "Plaintiffs" collectively refer to Cristina Araujo, Maya Atkins, Rafael Barragan, Kiana Cox, Erika Craft, Salvador Delahno, Flormelissa Fernandez, Joshua Garnett, Jay Harris, Iana Johnson, Vanessa Lockard, Maria Montenegro, Mary Narayan, Gayl Pina, Julie Marie Plemmons Iracema Regalado Claudia Serrano, Anne Thomas, Maria Torculas-Delahno, Rachel Velasco, Julia Venoy, and Materesa Yasay.

[2]. This amount does not include the $1,000 Complex Filing Fee, which is questionable because this case was not given a "complex" designation. [*See* Cal. Rules of Ct., rules 3.400-3.403.]

and items assessed upon application may be allowed or denied in the court's discretion." [Code Civ. Proc. § 1033.5, subd. (c).] The losing party may file a motion to dispute any or all items in the prevailing party's costs memorandum through a motion to strike or tax costs. [Cal. Rules of Ct., rule 3.1700, subd. (b).]

If the items appearing on a cost bill are proper charges, they are prima facie evidence that the cost, expense, or service listed was necessarily incurred. [*Rappenecker v. Sea-Land Service, Inc.* (1979) 93 Cal.App.3d 256, 266.] The burden is on the party seeking to tax costs to show they were not reasonable or necessary. [*Ladas v. Cal. State Automobile Assn.* (1993) 19 Cal.App.4th 761, 774.] However, "if the items are properly objected to, they are put in issue, and the burden of proof is on the party claiming them as costs." [*Ibid*.] Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court, and its decision is reviewed for abuse of discretion. [*Bender v. County of Los Angeles* (2013) 217 Cal.App.4th 968, 989.]

Discussion.

It is undisputed that Defendant is the prevailing party in this action. In non-FEHA cases, Defendant would ordinarily be entitled to costs. [Code Civ. Proc. § 1032.] However, in FEHA cases, a prevailing defendant may recover costs only if the plaintiffs' claims were objectively groundless or frivolous. [*Williams v. Chino Valley Independent Fire Dist.* (2015) 61 Cal.4th 97, 115; Gov. Code § 12965, subd. (b).] As to the FEHA portions of this case, Defendant concedes it cannot meet that standard. Thus, Defendant may recover only those costs properly allocated to the sole non-FEHA claim—the Second Amended Complaint's Fifth Cause of Action for wrongful discharge. [*Roman v. BRE Properties, Inc.* (2015) 237 Cal.App.4th 1040, 1062.]

The wrongful discharge claim was decided in Defendant's favor by February 17, 2023, due to Plaintiffs' concession at the summary-judgment hearing. After that date, only FEHA claims persisted; hence, costs incurred afterward are not recoverable. In reviewing Defendant's cost memorandum, the fees incurred before February 17, 2023, include filing and motion costs, a court reporter fee of $620.52, and Ms. Araujo's deposition transcript.

A. Filing and Motion Fees.

Filing and motion fees are recoverable costs. [Code Civ. Proc. § 1033.5, subds. (a)(1), (14).] Plaintiffs move to strike or tax Defendant's filing and motion fees totaling $2,925.25. Excluding the $1,000 complex fee [see fn. 2, supra], Defendant spent $1,334.06 on filing and motion costs before February 17, 2023. [See Attachment 1 to Memorandum of Costs at p. 1.] The motion is **GRANTED** for these costs because they would have been incurred regardless of the Fifth Cause of Action. Consequently, Defendant is not awarded any filing and motion costs.

B. Court Reporter Fee.

The only potentially eligible court-reporter fee in Defendant's memorandum is dated February 28, 2023, for $620.52, labeled as "for court reporting half day and transcript for hearing." It is unclear whether this represents a fee or the cost of a deposition transcript. Nonetheless, the motion is **GRANTED**.

Court reporter fees are recoverable costs. [Code Civ. Proc. §§ 1032, 1033.5, subd. (a)(11)]. Even if the Court considers the $620.52 as a court reporter fee, it is undisputed that Plaintiffs have already conceded that the Fifth Cause of Action would be summarily adjudicated by the time of the motion hearing. In essence, the arguments addressed at the summary-judgment hearing focused on the FEHA claims. Therefore, Defendant cannot claim court reporter fees because these costs were not reasonably necessary for the FEHA litigation. [Code Civ. Proc. § 1033.5, subd. (c)(2).]

If the $620.52 covers the cost of the hearing transcript, it cannot be recovered because the Court did not order the transcript. [Code Civ. Proc. § 1033.5, subd. (b)(5).]

C. Deposition Fees.

The only deposition conducted before the Fifth Cause of Action was adjudicated was Ms. Araujo's October 27, 2022, deposition, which cost $2,779.13. Since the Fifth Cause of Action is mainly based on FEHA violations and overlaps significantly with other causes of action, allocating only 20% of the costs to this claim lacks justification. Additionally, Ms. Araujo's transcript was not included in the four transcripts submitted with Defendant's opposition. Considering the natural overlap between the wrongful discharge claim and FEHA claims, and noting that the Second Amended Complaint also references other wrongful discharge grounds such as Labor Code section 1102.5 retaliation, the Court finds a 10% cost allocation appropriate. As a result, Plaintiff's motion to tax or strike the deposition fees is **GRANTED IN PART AND DENIED IN PART**. Defendant shall recover 10% of the $2,779.13 fee, amounting to $277.91. Plaintiffs are jointly and severally liable for this amount.

Conclusion.

The motion is **GRANTED IN PART AND DENIED IN PART**. The total cost awarded to Defendant, for which Plaintiffs are jointly and severally liable, is $277.91, representing 10% of the fee for Ms. Araujo's deposition transcript. Defendant cannot recover any other costs. Plaintiffs shall prepare the Proposed Order in line with this Tentative Ruling.

NOTE RE TENTATIVE RULING
This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by email or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.